

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
EDWIN VASQUEZ,

Plaintiff,

Index No.: 160385/2015

AMENDED
VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JESSE ANKELE, POLICE OFFICER
"JOHN DOE",
(fictitious name, real name unknown)Defendants.
-----X

Plaintiff, as and for his Complaint, by and through his attorney, the LAW
OFFICES OF SEAN H. ROONEY, complaining of the defendants, respectfully sets forth
and alleges upon information and belief as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all the times herein alleged, and upon information and belief, plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That the defendant THE CITY OF NEW YORK (hereinafter "CITY") was and still is a Municipal Corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Upon information and belief, that at all times hereinafter mentioned, Defendant POLICE OFFICER JESSE ANKELE (hereinafter "P.O. ANKELE") was and still is a resident of the State of New York.
4. Upon information and belief, that at all times hereinafter mentioned, Defendant POLICE OFFICER "JOHN DOE" (hereinafter "OFFICER") was and still is a resident of the State of New York.

5. That at all times hereinafter mentioned defendant P.O. ANKELE, was and still is an officer in the Police Department of the CITY OF NEW YORK. Suit is being brought against him individually and in his official capacity.

6. That at all times hereinafter mentioned defendant OFFICER, was and still is an officer in the Police Department of the CITY OF NEW YORK. Suit is being brought against him individually and in his official capacity.

7. That at the time of the aforesaid occurrence the defendant police officers were acting as an employee and agent of the CITY OF NEW YORK within the scope of their authority, and under color of law.

8. At all times relevant herein, the conduct of all Defendants were subject to 42 U.S.C. secs. 1983, 1985, 1986, and 1988.

9. Acting under the color of law, Defendants worked a denial of plaintiff's rights, privileges or immunities secured by the United States Constitution or by Federal law,

(a) by depriving Smith of his liberty without due process of law, by taking him into custody and holding him there against his will,

(b) by making an unreasonable search and seizure of his property without due process of law,

(c) by conspiring for the purpose of impeding and hindering the due course of justice, with intent to deny Smith equal protection of laws,

(d) by refusing or neglecting to prevent such deprivations and denials to plaintiff, thereby depriving plaintiff of his rights, privileges, and immunities as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

10. That on or about July 10, 2014, at approximately 12:30PM, while Plaintiff was lawfully at or near the 13th Precinct located at 230 E. 21st Street, in New York

County, State of New York, the defendants in the scope of their employment, as police officer and in connection with an illegal and false arrest, accosted Plaintiff, physically and verbally abused/assaulted the Plaintiff, illegally and forcibly handcuffed him, unlawfully searched the plaintiff, unlawfully detained plaintiff in a police vehicle, Central Booking, police precinct, holding cell, courthouse and other locations, confined Plaintiff until his release, and otherwise harmed the Plaintiff.

11. That during the aforesaid assault, the Defendant police officers repeatedly and without justification called Plaintiff names, cursed at Plaintiff, threatened Plaintiff and/or verbally tormented Plaintiff.

12. That in connection with the aforementioned assault, said defendants were accompanied by another police officer, whose name is unknown to Plaintiff, who joined in the assault, false arrest and unlawful confinement of the Plaintiff.

13. That the aforesaid assault took place in a public in front of other people, many of whom knew the Plaintiff, much to Plaintiff's dismay and humiliation.

14. That the aforesaid acts were the result of brutal, wanton and malicious conduct on the part of the Defendant police officers, and at no time did Plaintiff provoke or cause any of the aforesaid conduct and in no way was the aforesaid conduct justified or reasonable.

15. That at no time did Plaintiff commit any crime, break any law, or do any wrong.

16. That solely by reason of the foregoing, the Plaintiff sustained serious and severe personal and psychological injuries.

17. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

18. The Plaintiffs repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "17" as if fully set forth herein at length.

19. That at the time and place aforesaid, the Defendant police officers, while acting within the scope of their employment by the Defendant CITY, were negligent and grossly negligent and careless in taking custody the Plaintiff.

20. That such negligence and gross negligence consisted of, among other things, that they failed to properly investigate the situation; failed to ascertain the truth of the situation, which could have been ascertained upon reasonable inquiry; failed to discuss the situation with witnesses that were available; took drastic action on an unsubstantiated charge without any further verification or insufficient verification when the situation was not an emergency situation; misjudged and over judged the amount of force necessary to take into custody the Plaintiff; failed to take proper precautions to prevent unnecessary and severe physical and psychological injury to the Plaintiff while taking Plaintiff into their custody; failed to exercise the proper care and caution in taking the Plaintiff into custody; failed to adequately supervise its employs pertaining to proper use of force when taking persons into custody; and was otherwise careless and negligent.

21. That the injuries aforesaid were due to the negligence and gross negligence of the Defendants and the Plaintiff having in no way contributed thereto.

22. That as a result of the aforesaid, Plaintiff suffered severe personal and psychological injuries herein above alleged.

23. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

24. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "23" as if fully set forth herein at length.

25. That on July 10, 2014, the Plaintiff was falsely arrested without a warrant by the Defendant police officers acting on behalf of the Defendant CITY.

26. That at the aforesaid time and place, and in connection with the aforesaid arrest, the Defendant police officers handcuffed and detained the Plaintiff in a public place, Central booking, police precinct, holding cell, courthouse and other locations.

27. That the aforesaid arrest was a false arrest, in that it was without probable cause, without warrant and without just cause or justification.

28. That the aforesaid detention constituted an unlawful detention in that it resulted from an illegal and unlawful arrest with the Defendants having no cause, justification or right to detain the Plaintiff in their custody.

29. That said arrest was false, groundless and illegal in that Plaintiff committed no crime, broke no law and did no wrong, and there was no probable cause or just cause to believe he had.

30. That the Plaintiff arrest received wide notoriety in his home community in which the arrest occurred, in front of all his friends and acquaintances and in a loud, rambunctious and notorious manner as to attract the attention of all those around.

31. That solely as a result of this false arrest and false imprisonment, the Plaintiff's health was impaired, plaintiff suffered great mental distress, irreparable damage to his reputation and character, his earning power was permanently impaired, his record was permanently marred with the false and groundless notation that he was arrested, incurred substantial mental anguish, incurred substantial and permanent psychological disturbance and embarrassment as well as suffered all the injuries as previously alleged herein.

32. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

33. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "32" as if fully set forth herein at length.

34. That on July 10, 2014, the Defendants in connection with the aforesaid illegal detention and arrest of the Plaintiff, did intentionally, maliciously, and wantonly torment the Plaintiff by threatening him, calling him names, cursing at him, and abusing him, all in front of his friends, neighbors and acquaintances in a public place for no reason.

35. That the aforesaid acts were a result of brutal, outrageous and malicious conduct on the part of the Defendant police officer and at no time did the Plaintiff

provoke or cause any of the aforesaid conduct, and in no way was the aforesaid conduct justified or reasonable.

36. That as a result of the aforesaid, the Plaintiff suffered personal injuries as hereto before alleged, in addition to great mental distress, severe mental anguish, extreme humiliation, permanent psychological disturbance, embarrassment, intense fear, suffered great pain and distress and was otherwise injured.

37. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

38. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "37" as if fully set forth herein at length.

39. That the aforementioned acts are the result of an actual and defacto policy of the CITY as implemented by its officials, police commissioners and police departments.

40. That the aforesaid occurrences constitute a deprivation of Plaintiff's civil right under Federal Law specifically § 42 U.S.C. Section 1981, 1983, 1998 and the FIRST, FOURTH, FIFTH AND FOURTEENTH AMENDMENTS of the United States Constitution.

42. That the Defendants and their agents and employees have been conferred with "Police Officer Status" and as such, were acting under "Color of Law" and "Color of their Authority as Peace Officers" in effecting the unlawful entry/search, assault, battery and imprisonment of Plaintiff.

43. That the aforesaid actions constitute an unlawful search, unlawful entry, unlawful arrest, unlawful detention, excessive use of force and physical brutality, all in violation of the FIRST, FOURTH, FIFTH and FOURTEENTH AMENDMENTS of the United States Constitution, as well as 42 U.S.C. Section 1981, 1983 and 1988.

44. That solely as a result of the aforesaid violation of Plaintiff's right under the aforesaid Federal Statutes, the Plaintiff was caused to suffer the injuries that are hereto before alleged, as well as general damages for the violation and deprivation of his liberty, invasion of privacy, and other deprivation of Civil Rights, as well as attorneys fees as provided by said statutes.

45. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION
MALICIOUS PROSECUTION

46. That Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the paragraphs of the Complaint numbered "1" through "45" as if fully set forth herein at length.

47. That in connection with the false arrest and imprisonment, the defendants initiated a prosecution against the plaintiff, without probable cause to believe that such proceeding could succeed.

48. That defendants initiated such prosecution with malice, and that said prosecution terminated in favor of the plaintiff.

49. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION
FOR EXCESSIVE FORCE

50. That Plaintiff repeat, reiterate and re-allege each and every allegation contained in the paragraphs of the Complaint numbered "1" through "49" as if fully set forth herein at length.

51. The conduct and actions of the defendant POLICE OFFICERS acting in concert and under color of law, in authorizing, directing the unlawful arrest and assault of the plaintiff, was done intentionally, willfully, maliciously, with a deliberate indifference and/or with reckless disregard for the natural and probable consequences of their acts, was done without lawful justification or reason, and was designed to and did cause specific and serious physical and emotional pain and suffering in violation of Plaintiff's rights as guaranteed under 42 U.S.C. §1983, and the Fourth and Fourteenth Amendments of the United States Constitution, including the right to be free from an unreasonable seizure of his person and the right to be free from the use of excessive, unreasonable and unjustified force.

52. As a direct and proximate result of the foregoing, Plaintiff was subjected to great and physical and emotional pain and humiliation, was deprived of his liberty and was otherwise damaged and injured.

53. That solely by reason of the foregoing, the Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION
FOR PUNITIVE DAMAGES

54. That Plaintiff repeat, reiterate and re-allege each and every allegation contained in the paragraphs of the Complaint numbered "1" through "53" as if fully set forth herein at length.

55. That the aforesaid acts by the Defendants were the result of willful, wanton, outrageous, malicious, illegal, brutal and unconscionable intentions and actions without cause or justification.

56. That as a result of this wanton conduct and gross negligence, Plaintiff is entitled to recover punitive damages.

57. That solely by reason thereof, Plaintiff has been damaged in an amount which exceeds the jurisdictional limits of all lower Courts.

58. That heretofore, the Plaintiff caused to be served upon the comptroller of the Defendant CITY a Notice of Claim, pursuant to Section 50-e of the General Municipal Law, and more than 30 days have elapsed and the claim was not settled or adjusted. Said notice was served within 90 days of the occurrence complained of, and this action was commenced within one year and 90 days from the date of said occurrence.

AS AND FOR A NINTH CAUSE OF ACTION
NEGLIGENT HIRING/RETENTION

59. That Plaintiffs repeat, reiterate and re-allege each and every allegation contained in the paragraphs of the Complaint numbered "1" through "55" as if fully set forth herein at length.

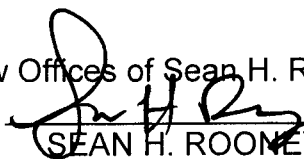
60. That Defendants failed to exercise reasonable care in selecting, hiring, retaining and training its employees. At the time defendants hired, retained and trained

said employee/police officers, defendants knew or should have reasonably known that said officers would violate the rights of members of the general public and as a direct and proximate result, would cause injuries as alleged herein.

61. As a direct and proximate result of Defendant's negligent selection, hiring, retention and training, plaintiff has suffered and continues to suffer injuries entitling plaintiff to damages in an amount which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, the Plaintiff demands Judgment against the Defendants on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth and Ninth Causes of Action in an amount which is in excess of the jurisdictional limit of all lower courts that would otherwise have jurisdiction in this matter, together with the costs and disbursements of this action.

Dated: Brooklyn, New York
October 21, 2015

Law Offices of Sean H. Rooney
By: 
SEAN H. ROONEY, ESQ.
Attorneys for Plaintiff

STATE OF NEW YORK)
) ss:
COUNTY OF KINGS)

SEAN H. ROONEY, being duly sworn, deposes and says:

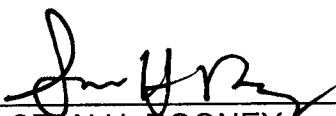
That he is a member of the LAW OFFICE OF SEAN H. ROONEY, attorneys for the Plaintiff.

That he has read the foregoing **SUMMONS and COMPLAINT**, and knows the contents thereof. That the same is true to his own knowledge except as to the matters therein stated to be alleged upon information and belief, and as to those matters he believes it to be true.

Deponent further says that the source of his information and the grounds of his belief as to all the matters herein not stated upon his knowledge are: Communications had with the said Plaintiff and the file maintained by this office and other pertinent data relating thereto.

Deponent further says that the reason why this verification is made by deponent and not by the said Plaintiff is that the said Plaintiff does not reside in the County of Kings, the County wherein deponent has his office.

Dated: Brooklyn, New York
October 21, 2015



SEAN H. ROONEY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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JESSE ANKELE, POLICE OFFICER
"JOHN DOE",
(fictitious name, real name unknown)

Defendants,
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SUMMONS AND COMPLAINT

LAW OFFICE OF SEAN H. ROONEY
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